

DISSENTING OPINION BY LORD FINLAY.

This case arose out of a collision between the *Lotus*, a French liner, and the Turkish steamer *Boz-Kourt*. It took place off Cape Sigri, in Mitylene, not within territorial waters but on the high seas. The *Boz-Kourt* was sunk and eight persons, sailors and passengers, were drowned. The officer of the watch on board the *Lotus* was Lieutenant Demons, and on the arrival of the *Lotus* at Constantinople, he was arrested by the Turkish authorities and put on his trial on charge of having committed an offence under Article 6 of the Turkish Penal Code.

That article is as follows :

“Quand un étranger commet contre un Turc en pays étranger un acte susceptible d’entraîner pour son auteur, d’après les dispositions du Code pénal turc, un emprisonnement de plus d’une année, cet étranger sera jugé par les tribunaux et conformément aux lois pénales de Turquie, s’il est trouvé sur le territoire turc.

“En pareil cas, les poursuites ne peuvent avoir lieu que sur la plainte de la Partie lésée ou sur celle du ministre de la Justice.”

We have not got before us the documents in the proceedings before the Turkish Courts, but it is clear that Demons was charged with having brought about the collision by his negligence and thereby causing the death of the eight Turks who were drowned. He was convicted and sentenced to fine and imprisonment.

The French Government alleged that the proceedings in the Turkish Courts were without jurisdiction, and by the *compromis* dated October 12th, 1926, made between the French and the Turkish Governments, the dispute was referred to the Permanent Court of International Justice. Article 1 of the *compromis* is as follows :

“La Cour permanente de Justice internationale sera priée de statuer sur les questions suivantes :

“1) La Turquie a-t-elle, contrairement à l’article 15 de la Convention de Lausanne du 24 juillet 1923 relative à l’établissement et à la compétence judiciaire, agi en contradiction des

principes du droit international — et, si oui, de quels principes — en exerçant, à la suite de la collision survenue le 2 août 1926 en haute mer entre le vapeur français *Lotus* et le vapeur *Boz-Kourt* et lors de l'arrivée du navire français à Stamboul, en même temps que contre le capitaine du vapeur turc, des poursuites pénales connexes en vertu de la législation turque, contre le sieur Demons, officier de quart à bord du *Lotus* au moment de la collision, en raison de la perte du *Boz-Kourt* ayant entraîné la mort de huit marins et passagers turcs ?

“2)”

The question for the Court is whether Turkey in this matter acted in contravention of the principles of international law; in other words, had the Turkish Courts jurisdiction to try and convict Demons ?

Article 15 of the Convention of Lausanne provides that “in all matters under reserve of Article 16 questions of judicial competence shall, in the relations between Turkey and the other contracting Powers, be regulated conformably to the principles of international law”.

This clearly refers to the general principles of international law in the ordinary sense of the term and it applies to criminal as well as to civil proceedings. Article 16 is for present purposes irrelevant.

The question for the Court is one purely of criminal law. The practice with regard to crimes committed at sea has been that the accused should be tried by the courts of the country to which his ship belongs, with the possible alternative of the courts of the country to which the offender personally belongs, if his nationality is different from that of the ship. There has been only one exception: pirates have been regarded as *hostes humani generis* and might be tried in the courts of any country.

In the ordinary course any trial of Demons on a charge of having by criminal negligence in navigation caused the sinking of the Turkish vessel by collision would have been held in a French court, as France was his country as well as that of the flag of the ship. He was tried and convicted by a Turkish court and according to Turkish law.

The first point with which the Court has to deal is this : What is the exact meaning of the question put in the *compromis*: *La Turquie a-t-elle agi en contradiction des principes du droit international ?*

It has been argued for Turkey that this question implies that France, in order to succeed, must point to some definite rule of international law forbidding what Turkey did. I am unable to read the *compromis* in this sense. What it asks is simply whether the Turkish Courts had jurisdiction to try and punish Demons ; if international law authorizes this, the question would be answered in the affirmative, otherwise in the negative. The *compromis* cannot, with any fairness, be read so as to require France to produce some definite rule forbidding what was done by Turkey. If the Turkish proceedings were not authorized by international law, Turkey acted *en contradiction des principes du droit international*. There is no mention of any "rule" but only of "principles".

The question is put in the *compromis* with perfect fairness as between the two countries and the attempt to torture it into meaning that France must produce a rule forbidding what Turkey did arises from a misconception. The question is whether the principles of international law authorize what Turkey did in this matter.

I.

It was argued for Turkey that the *délit* committed by Demons was committed on board the *Boz-Kourt* when by a faulty manœuvre of his she was struck by the *Lotus*, and as the *Boz-Kourt* was a Turkish ship she must, it was said, be regarded as part of Turkish territory, and the *délit* was therefore committed on Turkish territory as much as if it had been committed on shore within the territorial limits of Turkey.

This is a new and startling application of a metaphor and, if it is held good, it would mean that if there is a collision on the high seas between a Turkish vessel and a ship of any other nationality, any of the officers and crew of that other ship may be arrested in any Turkish port and put on their trial before a Turkish court on a

criminal charge of having caused the collision by their negligence. This view appears to be based on a misconception of the proposition that a ship on the high seas may be regarded as part of the territory of the country whose flag she flies.

Turkey's case is that the crime was committed in Turkish territory, namely, on a Turkish ship on the high seas, and that the Turkish Courts therefore have a territorial jurisdiction. A ship is a movable chattel, it is not a place ; when on a voyage it shifts its place from day to day and from hour to hour, and when in dock it is a chattel which happens at the time to be in a particular place. The jurisdiction over crimes committed on a ship at sea is not of a territorial nature at all. It depends upon the law which for convenience and by common consent is applied to the case of chattels of such a very special nature as ships. It appears to me to be impossible with any reason to apply the principle of locality to the case of ships coming into collision for the purpose of ascertaining what court has jurisdiction ; that depends on the principles of maritime law. Criminal jurisdiction for negligence causing a collision is in the courts of the country of the flag, provided that if the offender is of a nationality different from that of his ship, the prosecution may alternatively be in the courts of his own country.

The case seems to me clear on principle, but there is also authority which points to the same conclusion.

In the *Franconia* case (R. v. Keyn, 1877, 2 Ex. Div. 63), it was argued for the Crown that there was jurisdiction in the English Courts to try a charge of manslaughter on the very ground which we are now considering.

Keyn was in command of a German ship and by his negligence he came into collision with a British vessel, the *Strathclyde* ; the *Strathclyde* was sunk and an English passenger on board her was drowned. Keyn was found guilty of manslaughter at the Central Criminal Court. The question of jurisdiction was argued in the Court for Crown Cases Reserved. It was urged that there was jurisdiction in the English Courts on the ground that Keyn had committed manslaughter on board a British ship. The collision took place within the territorial waters but this for present

purposes is immaterial. As Amphlett, J. A., said (page 118 of the Report in 2 Ex. Div.), this ground was quite independent of the three-mile zone and if valid would justify the conviction of the prisoner, had the offence been committed in the middle of the ocean. It was decided by eleven out of the thirteen judges who formed the Court that the conviction could not be supported on this ground.

The point so decided is exactly the same as that which arises in the present case. The decision was that the fact that death was caused on board the British ship by the criminal negligence of the captain of the foreign ship did not give jurisdiction to the English Courts to try him on the criminal charge. This was the case of a collision between a German and a British ship and on the face of it raised a question of international law. By eleven judges to two it was held that this did not give jurisdiction to the English Court. I do not think it is correct to say that this raised only a question of English law. As the ships were of different nationalities, the decision depended on the principles of international law. International law, wherever applicable, is considered as part of the law of England, and our judges must apply it accordingly. It seems to me that it is not right to treat *R. v. Keyn* as if it had been a decision merely on a question of English municipal law. The judges cannot have overlooked the fact that they were dealing with vessels of different nationalities and the decision must have proceeded on the law applicable to such a case. The decision of course proceeded upon the view which the English Court took of the international law on the point, but it was international law which they had to apply. The decision is not binding upon this Court but it must be regarded as of great weight and cannot be brushed aside as turning merely on a point of English municipal law. Some expressions used by one of the two dissentient judges (Denman, J.) might give rise on a hasty perusal to the idea that the case turned on English law. These expressions occur on page 100 and page 101 of the Report (*ubi supra*). The learned judge was discussing the meaning of Section 22 of the Statute 4 and 5 William IV, Chapter 36, giving jurisdiction to the Central Criminal Court to try offences committed on the high seas. He said: "This question appears to me to turn mainly upon the question: where is the offence committed? And in deciding this question I think we are bound to decide according to the principles of English law." He went on to say that one prin-

ciple of English law is that a British ship as regards criminal offences committed on board of her is to be treated as British territory, and as much subject to our law as any other part of the Queen's dominions. These expressions of Mr. Justice Denman do not appear to me to have any relevance to the question of the law applicable in the case of a collision between a British and a foreign ship.

II.

Turkey, however, has another ground upon which she contends that there was jurisdiction. The judgment of the Permanent Court is silent with reference to this point; as the Court was in favour of Turkey upon the first point,—that with which I have been hitherto dealing,—it was thought unnecessary for them to pronounce upon this further point. But as I have the misfortune to differ from the conclusion at which the Court arrived on the first point, it is necessary for me to deal with this further point. We have had the advantage of very full and most elaborate arguments upon it.

Turkey asserts that the trial of Demons before the Turkish Courts was justified by Article 6 of the Turkish Penal Code, above set out, on the ground that Demons, by his negligent navigation of the *Lotus* resulting in the collision and loss of Turkish lives, had been guilty of an act which, by Turkish law when he came to Turkey, rendered him liable to prosecution for it in the Turkish Courts according to that article. It has by consent been assumed for the purposes of the case that the collision off Cape Sigri was *en pays étranger* within the meaning of the article and the question for us is one of international law only.

The passing of such laws to affect aliens is defended on the ground that they are necessary for the "protection" of the national. Every country has the right and the duty to protect its nationals when out of their own country. If crimes are committed against them when abroad, it may insist on the offenders being brought to justice, but

this must be done in the proper way and before tribunals having jurisdiction. The government of the country of the injured person is entitled to bring pressure to bear upon the government of the offender to have him brought to justice, but it has no right to assert for this purpose in its own courts a jurisdiction which they do not possess.

The Law of Nations does not recognize the assumption of jurisdiction for "protection"; there never has been any such general consent by the nations as would be required to make this doctrine a part of international law. Any State which finds it necessary to acquire such a power should by convention get the consent of the other States affected. Such a convention would of course have to define the limits and conditions affecting the exercise of the power. A country is no more entitled to assume jurisdiction over foreigners than it would be to annex a bit of territory which happened to be very convenient for it. Any such convention affecting the jurisdiction to try crimes by negligence in navigation would of course require the most careful consideration as to the definition of what amounted to criminal negligence for this purpose. It would be extraordinary if it should appear that jurisdiction had been conferred, leaving it to the court of the country in each case to determine what was criminal negligence for the purposes of such jurisdiction.

I desire to refer to what was said by Mr. Oppenheim on this subject of "Protection" (Vol. I, "Peace", p. 239, paragraph 147) :

"Many States claim jurisdiction and threaten punishment for certain acts committed by a foreigner in foreign countries. States which claim jurisdiction of this kind threaten punishment for certain acts either against the State itself, such as high treason, forging bank-notes, and the like, or against its citizens, such as murder or arson, libel and slander, and the like. These States cannot, of course, exercise this jurisdiction as long as the foreigner concerned remains outside their territory. But if, after the committal of such act, he enters their territory and comes thereby under their territorial supremacy, they have an opportunity of inflicting punishment. The question is, therefore, whether States have a right

to jurisdiction over acts of foreigners committed in foreign countries, and whether the home State of such an alien has a duty to acquiesce in the latter's punishment in case he comes into the power of these States. The question, which is controversial, ought to be answered in the negative. For at the time such criminal acts are committed, the perpetrators are neither under the territorial nor under the personal supremacy of the States concerned. And a State can only require respect for its laws from such aliens as are permanently or transiently within its territory. No right for a State to extend its jurisdiction over acts of foreigners committed in foreign countries can be said to have grown up according to the Law of Nations, and the right of protection over citizens abroad held by every State would justify it in an intervention in case one of its citizens abroad should be required to stand his trial before the courts of another State for criminal acts which he did not commit during the time he was under the territorial supremacy of such State."

This passage, in my opinion, is an accurate statement of the international law applicable. Its value is not affected by the fact referred to in the notes on page 240 that continental publicists have thought otherwise; we are concerned with the question what international law *is*, not what it ought to be.

Mr. Oppenheim went on to refer to the case of Cutting, which arose between Mexico and the United States in 1886, the facts of which have been already stated in the course of the present proceedings. Nothing was decided in the Cutting case and the question of jurisdiction continued to form a subject of discussion among jurists. In the *British Year Book of International Law* for 1925 there will be found on page 44 *et seq.* an article by Mr. W. E. Beckett on "The Exercise of Criminal Jurisdiction over Foreigners", in which the history of the controversy up to date is given.

This Court never can have to consider whether "protection" of this sort is or is not desirable. The question for the Court must always be, in the absence of convention, simply whether it has been adopted by the common consent of nations as a part of international law. As a plain matter of fact, it appears to me

that it has not yet been so adopted. The Court, of course, could never allow itself to be entangled in arguments for and against the theory. The question simply is whether, by general consent, "protection" of this kind has become a part of international law. If that question is answered in the negative, as I think it must be, Article 6 of the Turkish Penal Code did not bind France, and the jurisdiction of the Turkish Court to try Demons could not be supported on this ground.

Of course, every country has the right to protect the persons and the property of its citizens. If a wrong is done, the State may demand redress and enforce it, but the assertion that any State can by any law of its own assume criminal jurisdiction in respect of alleged crimes committed abroad or on the high seas is a new one. The government of the country of the injured person may call upon the government of the country where the injury was committed to have the offenders punished in due course by law, but it cannot make laws for their punishment in its own courts, except in pursuance of a convention with the other Power affected.

In my opinion, both the grounds on which Turkey has tried to support the conviction are unsound and France is entitled to the judgment of this Court.

(Signed) FINLAY.
